



CHAPTER lxiv.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Portobello and Musselburgh Tramways (Levenhall Extension). [26th July 1907.] A.D. 1907.

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Portobello and Musselburgh Tramways (Levenhall Extension) Order Confirmation Act 1907. Short title.

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SCHEDULE.

PORTOBELLO AND MUSSELBURGH TRAMWAYS
(LEVENHALL EXTENSION).

*Provisional Order for conferring power upon the
Musselburgh and District Electric Light and Traction
Company Limited to construct a Tramway in the
Burgh of Musselburgh and for other purposes.*

WHEREAS tramways authorised by the Portobello and Musselburgh Tramways Order 1900 (confirmed by the Tramways Orders Confirmation (No. 3) Act 1900 and herein-after called "the Order of 1900") and by the Portobello and Musselburgh Tramways Order 1903 (confirmed by the Tramways Orders Confirmation (No. 1) Act 1903 and herein-after called "the Order of 1903") have been constructed and are now vested in the Musselburgh and District Electric Light and Traction Company Limited (herein-after called "the Company") :

And whereas by the Portobello and Musselburgh Tramways (Port Seton Extension) Order 1906 (confirmed by the Tramways Orders Confirmation Act 1906 and herein-after called "the Order of 1906") and by the Portobello and Musselburgh Tramways (Port Seton Deviation) Order 1907 (confirmed by the Portobello and Musselburgh Tramways (Port Seton Deviation) Order Confirmation Act 1907 and herein-after called "the Port Seton Deviation Order 1907") the Company are authorised to construct certain additional tramways and to execute certain street works :

And whereas the tramways authorised by the Order of 1906 and the Port Seton Deviation Order 1907 will not when constructed form a continuous route in extension of the tramways already constructed and it is expedient that the Company should be authorised to construct the tramway herein-after described for the purpose of forming such continuous route as aforesaid :

And whereas plans and sections showing the lines and levels of the tramway by this Order authorised and showing the lands required or which may be used for the purposes or under the

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powers of this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the principal sheriff clerk for the county of Mid-Lothian and such plans and sections are herein-after respectively referred to as "the deposited plans and sections":

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—

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the Portobello and Musselburgh Tramways (Levenhall Extension) Order 1907 and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as "the commencement of this Order."

Short title.

2. The following Acts and parts of Acts (that is to say):—

The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to entry upon lands by the promoters of the undertaking);

Incorporation of general Acts.

Section 3 (Interpretation of terms) Part II. (Construction of tramways) and Part III. (General provisions) of the Tramways Act 1870;

so far as they are applicable to and are not varied by or inconsistent with the provisions of this Order are incorporated with and form part of this Order.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Order—

Interpretation.

"The Company" means the Musselburgh and District Electric Light and Traction Company Limited;

"The tramway" and "the undertaking" mean respectively the tramway and the undertaking and any part thereof by this Order authorised;

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“The Order of 1900” means the Portobello and Musselburgh Tramways Order 1900;

“The Order of 1903” means the Portobello and Musselburgh Tramways Order 1903;

“The Order of 1906” means the Portobello and Musselburgh Tramways (Port Seton Extension) Order 1906;

“The Port Seton Deviation Order 1907” means the Portobello and Musselburgh Tramways (Port Seton Deviation) Order 1907;

“The existing tramways” means the tramways authorised and constructed by and under the Order of 1900 and the Order of 1903;

“Sheriff” shall include sheriff-substitute.

Power to
make tram-
way.

4. Subject to the provisions of this Order the Company may make form lay down work use and maintain the tramway hereinafter described in the lines and within the limits of deviation and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates works and conveniences connected therewith and equip the same with the necessary plant and rolling stock Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 the Electric Lighting (Scotland) Act 1890 and the Electric Lighting (Scotland) Act 1902 to which the provisions of section 15 of the first of the said Acts apply except in accordance with and subject to the provisions of that section.

The tramway herein-before referred to and authorised by this Order will be situate wholly in the burgh of Musselburgh parish of Inveresk and county of Midlothian and is as follows:—

A tramway (3 furlongs 4·47 chains or thereby in length of which 2 furlongs 8·41 chains or thereby is single line and 6·06 chains or thereby is double line) commencing in the main road leading from Musselburgh to Port Seton by a junction with the existing tramway belonging to the Company at its point of termination and passing thence in an easterly direction along the said main road and terminating by a junction with Tramway No. 2

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authorised by the Order of 1906 at a point in such road where the boundary of the burgh of Musselburgh intersects that road. A.D. 1907.

5. If the tramway by this Order authorised is not completed within four years from the twenty-ninth day of April one thousand nine hundred and seven then on the expiration of that period the powers by this Order granted for making or completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramway.

6. Subject to the provisions of this Order the provisions of the sections of the Order of 1900 and of the Order of 1903 the numbers and marginal notes whereof are set out in the schedule hereto shall so far as they are applicable in that behalf extend and apply mutatis mutandis to the tramway and undertaking by this Order authorised in like manner in every respect as if the tramway and undertaking by this Order authorised formed part of the tramways and undertaking authorised by the Order of 1900. Provided that in the application of the said provisions the expressions "the tramways" "the undertaking" and "this Order" shall be construed to mean respectively the tramway and the undertaking by this Order authorised and this Order and the Company or other the promoters for the time being within the meaning of the Tramways Act 1870 of the tramway authorised by this Order shall be deemed to be "the promoters" for the purpose of the application of the said provisions. Applying to tramway certain provisions of Orders of 1900 and 1903.

7. For the protection of the gas mains and pipes of the Musselburgh Gas Light Company (in this section called "the owners") notwithstanding anything contained in section 30 of the Tramways Act 1870 or in this Order the following provisions shall unless otherwise agreed between the Company and the owners apply and have effect that is to say The Company shall not in making forming laying down maintaining repairing or renewing the tramway or any part thereof themselves alter or interfere with the existing lines or levels of the mains or lines of pipes and apparatus connected therewith or any of them belonging to the owners including consumers' pipes nor injuriously affect or interrupt the supply of gas conveyed by the same but any duplication or alteration or removal and relaying of or interference with the mains or pipes and apparatus connected therewith of the owners including consumers' pipes which may be necessary in consequence of the construction and maintenance For protection of gas mains and pipes.

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A.D. 1907. of the tramway and of the works and operations of the Company shall be executed by the owners at the expense of the Company and the owners shall at all times have a right of access to such mains and pipes and apparatus connected therewith including consumers' pipes and to the roads on which the tramway is laid for the duplication extension renewal repair enlargement alteration and maintenance of such mains and pipes and for making new connexions and laying additional pipes when and wherever they shall see fit and any cost of removal and relaying and of alterations or repairs rendered necessary by the works or operations of the Company in any road or street where any such mains and pipes and apparatus connected therewith including consumers' pipes shall have been laid before the formation of the tramway shall be borne and paid by the Company to the owners and in all cases where works are to be executed by the owners at the cost of the Company the owners shall use every means in their power to have the works executed as economically as possible and with all reasonable despatch But if any dispute shall arise between the Company and the owners as to the amount of such costs the same shall be decided by arbitration in the manner herein-after provided and all payments for work executed by the owners shall be made by the Company within one month after the cost of the work has been agreed on or fixed by arbitration as aforesaid with interest at five per centum per annum from the expiration of such one month till paid.

If any difference shall at any time arise between the Company and the owners or their respective engineers with respect to the necessity for any duplication alteration removal or interference with the mains or pipes and apparatus of the owners or as to the amount claimed by the owners from the Company of the cost of any works executed by the owners under this section or with respect to the time taken or required for executing any of the works or operations therein mentioned or with respect to any other matter under this section such difference shall be referred to an engineer to be mutually agreed on or failing agreement to an engineer to be appointed by the Board of Trade on the application of either the Company or the owners.

The provisions of section 30 of the Tramways Act 1870 as the same are amended by this section shall remain in force.

The expression "the Company" shall for the purposes of this section include assignees licencees and any person for the time being owning the tramway.

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8. The provisions of section 8 of the Order of 1900 the marginal note whereof is "For the protection of the water mains and pipes of the Edinburgh and District Water Trustees" shall extend to the tramway and undertaking by this Order authorised and shall apply mutatis mutandis to any mains aqueducts conduits or lines of pipes and apparatus connected therewith which may be hereafter laid by the said Edinburgh and District Water Trustees in the roads or streets in which the tramway by this Order authorised is to be constructed as if such mains and other works aforesaid had been already laid.

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For protection of Edinburgh and District Water Trustees.

9. For the protection of the water mains and pipes of the Musselburgh Town Council (in this section called "the town council") notwithstanding anything contained in section 30 of the Tramways Act 1870 or in this Order the following provisions shall unless otherwise agreed between the Company and the town council apply and have effect that is to say The Company shall not in making forming laying down maintaining repairing or renewing the tramway or any part thereof themselves alter or interfere with the existing lines or levels of the mains aqueducts conduits or lines of pipes and apparatus connected therewith or any of them belonging to the town council including consumers' pipes nor injuriously affect or interrupt the supply of water conveyed by the same but any alteration of or interference with the mains aqueducts conduits or lines of pipes and apparatus connected therewith of the town council including consumers' pipes which may be necessary in consequence of the construction of the tramway authorised by this Order shall on the requisition of the Company be executed by the town council at the expense of the Company and the town council shall at all times have a right of access to such mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes for the renewal repair enlargement alteration and maintenance of the same and for making new connexions and laying additional pipes when and wherever they shall see fit and any additional cost of such alterations or repairs caused by the works of the Company of any such mains aqueducts conduits lines of pipes and apparatus connected therewith including consumers' pipes laid before the construction of the tramway shall be borne by the Company And in all cases where works are to be executed by the town council at the cost of the Company the town council shall use every means in their power to have the works executed as economically as possible and with all reasonable despatch.

For protection of water mains and pipes of Musselburgh Town Council.

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If any difference shall at any time arise between the Company and the town council or their respective engineers with respect to the necessity for any alteration of or interference with any mains aqueducts conduits or lines of pipes and apparatus connected therewith including consumers' pipes of the town council or with respect to the cost of any works executed by the town council under this section or with respect to any other matter under this section or the time taken or required for executing any of the works or operations therein mentioned such difference shall be referred to an engineer to be mutually agreed on or failing agreement to an engineer to be appointed by the Board of Trade on the application of either the Company or the town council as the case may be.

For protection of magistrates and town council of burgh of Musselburgh.

10. For the protection of the magistrates and town council of the burgh of Musselburgh (in this section called "the town council") the following provisions shall have effect:—

- (1) The tramway shall be constructed to the satisfaction of the Board of Trade and in the event of any road widenings being ordered by the Board of Trade those widenings shall be carried out and the whole cost paid by the Company:
- (2) In the event of the town council resolving to execute the road widenings (A) (B) and (C) specified in section 5 of the Port Seton Deviation Order 1907 and carrying out the said widenings or any of them the Company shall be bound to repay to the town council one half of the cost thereof but which payment to the town council shall not exceed the sum of one thousand pounds Provided that if any road widening executed by the town council involves an alteration of a telegraphic line belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to such alteration and for the purposes of such application the town council shall be deemed to be the undertakers within the meaning of that section and any costs incurred by the town council under that section shall be deemed to be part of the cost referred to in this subsection:
- (3) All the provisions of the Orders of 1900 and 1903 including the provisions of section 36 of the Order

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of 1900 in favour of the town council shall so far A.D. 1907.
as applicable apply to the tramway :

- (4) The provisions of section 46 of the Order of 1900 as amended by section 5 of the Portobello and Musselburgh Tramways Amendment Order 1905 confirmed by the Tramways Orders Confirmation (No. 2) Act 1905 shall apply to the tramway hereby authorised as if the tramway hereby authorised had been authorised and laid down under the Order of 1900.

11. Notwithstanding anything shown on the deposited plans the tramway shall in the event of the bridge at Ravenshaugh not being widened be so laid where it crosses the said bridge as to allow a clear space of nine feet six inches between the nearest rail of the tramway and the outside of the footpath on one side of the road unless the Board of Trade otherwise determine.

Bridge at
Ravens-
haugh.

12. The tramway shall for the purposes of the traffic and of the rates and charges to be demanded and taken thereon be deemed to form part of the undertaking of the Company authorised by the Order of 1900 and the Order of 1900 shall so far as applicable apply to the tramway and to the traffic upon the same and to the rates and charges authorised to be demanded and taken in respect of such traffic in like manner and in every respect as if the tramway formed part of the tramways authorised by the Order of 1900. Provided that the words " Provided that the promoters " shall not charge more than twopence for the whole journey " from terminus to terminus of the tramways authorised by this " Order " in section 39 of the Order of 1900 shall not apply to the tramway.

Tramway to
be deemed
part of tram
ways autho-
rised by Or-
der of 1900
as regards
traffic and
rates and
charges.

13. Section 30 (except subsections (1) and (5) thereof) of the Tramways Act 1870 in its application to the tramway shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Application
of section 30
of Tramways
Act 1870 to
overhead
wires.

14. The Company may cut and lop any trees planted in or near any highway along which the tramway is laid which may in any way interfere with the construction or working of the tramway or trolley wires in connexion therewith or with the clear and safe passage of the tramcars and the passengers thereon. Provided that the Company shall not in the exercise of the powers of this section do unnecessary damage to any such trees and shall make compensation to any persons who may sustain damage by

Company
may lop trees
overhanging
public high-
ways.

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A.D. 1907. — the exercise of the powers conferred by this section Provided also that except in cases of emergency the Company shall give notice to the owners or reputed owners or their known agents or factors eight days before exercising the said powers The amount of compensation payable under this section shall in the event of dispute be settled by the sheriff in a summary way on the application of either party after hearing the parties and taking such evidence (if any) as he thinks just and the decision of the sheriff shall be final.

Attachment
of brackets
&c. to build-
ings.

15. The Company may with the consent of the owner of any building or bridge or of any column post or standard erected for lighting purposes in any road street footway footpath or place in which the tramway is situate attach thereto such brackets wires and apparatus as may be required for the working of the tramway by mechanical power:

Provided that—

(1) Where in the opinion of the Company any consent under this section is unreasonably refused they may appeal to the sheriff who shall have power to deal therewith in a summary way and after hearing the parties and taking such evidence (if any) as he thinks just and having regard to the character of the building or bridge or of such column post or standard as the case may be and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as he may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid and the decision of the sheriff shall be final:

(2) Any consent of an owner and any order of the sheriff under this section shall not have effect after that owner ceases to be in possession of the building or bridge or of such column post or standard but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Company notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the sheriff shall have the same powers as under proviso (1):

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- (3) The owner may require the Company to temporarily remove the attachments where necessary during any reconstruction or repair of the building or bridge or of such column post or standard. A.D. 1907.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rent shall be deemed to be the owner.

16. The Company shall run each day in the week (except on Sundays when the service of cars shall be such as the Company may consider necessary) between the hours of eight in the morning and ten in the evening at least one car each way over the tramway every thirty minutes during these hours. The Company shall be liable to a penalty not exceeding one pound for every day on which they do not run such number of cars as aforesaid in accordance with the provisions of this section. Provided always that the Company shall not be liable to any such penalty if the failure to run such number of cars arises from circumstances over which the Company have no control. Special service of cars.

17. The Company shall run the carriages on the tramway authorised by this Order and on the tramways authorised by the Order of 1900 the Order of 1903 the Order of 1906 and the Port Seton Deviation Order 1907 at intervals of time suitable to the requirements of the districts served and if the Company is not providing a sufficient service the Board of Trade may on the application of the local authority or any other body or person and after consideration of the circumstances order the Company to provide and the Company shall forthwith provide such additional service of cars as the Board may in their discretion think reasonable and prescribe. General service of cars.

18.—(1) Section 42 of the Order of 1900 is hereby repealed and notwithstanding anything contained in the Order of 1903 the Order of 1906 or the Port Seton Deviation Order 1907 that section shall from and after the passing of the Act confirming this Order be deemed not to be incorporated with or to form part of those Orders. Cheap fares for labouring classes.

(2) The Company shall at all times (as regards the existing tramways from and after the commencement of this Order and as regards the tramways authorised by the Order of 1906 the

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Provided that—

(a) The Company shall not charge more than one penny for the whole journey from terminus to terminus of the existing tramways :

(b) The Company shall not charge more than threepence for the whole journey from the western terminus of the existing tramways to the eastern terminus of the tramways authorised by the Order of 1906.

On Saturdays the Company in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(3) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Company to provide such service as may appear to the Board to be reasonable.

(4) The Company shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Stopping of
roads during
execution of
works.

19. Subject to the provisions of this Order the Company may during the execution of the tramway with the consent of the road authority expressed in writing by the clerk of such authority stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up bars posts and other erections Provided that the Company shall before stopping up any footway under this section provide a temporary substitute therefor with accesses therefrom to the carriageway for the use of the occupiers of the houses abutting on the road.

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20.—(1) The Company may subject to the provisions of this Order enter into agreements with the road authority with respect to the forming laying down maintaining renewing repairing working and using of the tramway and the rails plates sleepers posts wires apparatus and works connected therewith and for facilitating the passage of carriages and traffic over and along any roads or streets in the district of such authority upon or along which the tramway or any part thereof is intended to be laid.

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Agreements
with road
authority.

(2) The Company on the one hand and the road authority on the other hand may enter into and carry into effect agreements with respect to the costs of the widening and improving by the road authority of any roads streets bridges courts passages and footpaths within the district of such authority and as to the contribution by the Company towards the moneys to be expended on such works.

21. Whereas pursuant to the General Orders under the Private Legislation Procedure (Scotland) Act 1899 and to the Parliamentary Deposits Act 1846 as applied in such General Orders a sum of two hundred and eleven pounds being five per centum upon the amount of the estimate in respect of the tramway authorised by this Order has been deposited with the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in respect of the application for this Order (which sum is in this Order referred to as "the deposit fund") Be it enacted that notwithstanding anything contained in the said Parliamentary Deposits Act 1846 the deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Order referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Order for completion of the tramway open the same for the public conveyance of passengers And if the Company shall make default in so opening the tramway the deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the tramway for the public conveyance of passengers then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramway

Deposit fund
not to be re-
paid except
so far as
tramway is
opened.

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Application
of deposit
fund.

22. If the Company do not previously to the expiration of the period limited by this Order for the completion of the tramway complete the same and open it for the public conveyance of passengers then and in every such case the deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property may have been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramway or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Order and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramway and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit And if no such compensation shall be payable or if a portion of the deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the deposit fund or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such factor or to the liquidator or liquidators of the Company or be applied in the discretion of the Court as part of the assets of the

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Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the depositors
Provided that until the deposit fund has been repaid or retransferred to the depositors or shall have become otherwise applicable as herein-before mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

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23. In the event of the Company desiring to exercise the power of sale conferred by section 44 of the Tramways Act 1870 they shall give to the local authority six calendar months previous notice of their intention to exercise such power and of the terms and conditions of such proposed sale and the local authority may thereupon if by resolution passed at a special meeting of the members constituting the local authority in accordance with the provisions of section 43 of the Tramways Act 1870 they so decide within the said period of six months by notice in writing require the Company to sell to them the tramway upon the same terms and conditions as those specified in the said first-mentioned notice and the Company shall forthwith sell the same to the local authority accordingly and all the provisions of section 43 of the Tramways Act 1870 with regard to the purchase of the undertaking by the local authority shall extend and apply to any sale to the local authority under this section.

Local authority to have right to purchase in event of contemplated sale.

24. Where the consent or approval of any local or road authority is by this Order or by any Act incorporated herewith required before the exercise of any powers by the Company such consent or approval shall not be unreasonably withheld and if any difference arise as to whether any consent or approval is unreasonably withheld that difference shall be referred to an arbiter to be appointed by the Board of Trade.

Consents of local or road authority.

25. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the Act confirming this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

Copy of Order to be registered.

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There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Acts 1862 to 1900 on registration of any document other than a memorandum of association.

Costs of
Order.

26. All costs charges and expenses of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Order.

SECTIONS OF THE ORDERS OF 1900 AND 1903 EXTENDED
TO THIS ORDER.

Section.	Marginal Note.
ORDER OF 1900.	
13	Gauge and width of carriage.
14	Provisions as to construction of tramways.
15	As to rails of tramways.
16	Penalty for not maintaining rails and road in good condition.
17	Right of access to sewers &c.
18	Tramways to be kept on level of surface of road.
20	Crossovers to be constructed in certain cases.
22	Temporary tramways may be made when necessary.
23	Application of road materials excavated in construction of works.
24	As to removal of snow &c.
25	Tramways not to be opened until certified by Board of Trade.
26	Provisions as to motive power.
27	Mechanical power works.
28	As to posts standards and brackets.
29	Mechanical power works to be subjected to section 30 of Tramways Act 1870.
30	Byelaws.
31	Amendment of the Tramways Act 1870 as to byelaws by local authority.
32	Special provisions as to use of electrical power.
33	For protection of the Postmaster-General.
34	Traffic upon tramways.
35	Promoters not bound to carry animals goods &c.
38	As to stopping places.
39	Rates for passengers (except the proviso to this section):
40	As to fares on Sundays and holidays.
41	Passengers' luggage.
43	Rates and charges for animals goods &c.
44	Payment of rates.
45	Periodical revision of rates and charges.
48	Agreements with road authority.
49	Working agreements.

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50	Saving as to powers of borrowing on mortgage.	
51	Orders &c. of the Board of Trade.	
52	Recovery of penalties.	
53	Form and delivery of notices.	
54	Provisions as to arbitration.	
55	Saving for general Acts.	
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	ORDER OF 1903.	
10	Power to make additional crossings and to alter tramway lines.	
11	For protection of Postmaster General.	

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